



File No.: EXP202210193

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on September 22, 2022. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

“(…) has installed a video surveillance camera in the community garage of the building located at Calle ***DIRECCIÓN.1 in Alicante, without prior authorization from the Community of Owners and without having installed the mandatory informative signs indicating a video surveillance area (…)—page no. 1--.

Along with the notification, documentary evidence is provided in support of the claims made in the complaint (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was duly received as evidenced by the acknowledgment of receipt in the file.

THIRD: On December 5, 2022, a written response was received from the respondent, who did not deny the presence of the camera or being responsible for its installation, providing a document with “consent” from a number of neighbors that suffers from a series of formal defects, as well as photographic evidence of the images obtained from the camera in its orientation.

FOURTH: On December 22, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant was admitted for processing.

FIFTH: On March 9, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

SIXTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and the respondent submitted a written statement on April 17, 2023, in which, in summary, stated the following:

- That it has the authorization of the Board of Owners, providing a copy of the minutes dated November 23, 2022, where the installation is authorized.

“It is noted that the neighbor of parking space No. XX has installed a security camera in his parking space and has permission from the adjacent neighbors. Permission is requested from the Community to maintain said camera.”

- Provides an undated photograph that proves the presence of an informative sign.

SEVENTH: On April 26, 2023, a Resolution Proposal was issued proposing a sanction amounting to €300, for not having initially installed an informative sign indicating to the community of neighbors that it was a video surveillance area, thus confirming the infringement of Article 13 of the GDPR, with the sanction situated in the lower scale for such conduct.

It is recorded in the computer system of this Agency that the notification was “delivered” on May 11, 2023, at 18:59, with the recipient being the respondent.

EIGHTH: Upon consulting the database of this agency on June 9, 2023, no allegations have been received regarding the proposal, nor has any corrective measure been justified.

From the actions taken in this procedure and the documentation in the file, the following has been

established:

PROVEN FACTS

First. On September 22, 2022, a complaint was filed with this agency through which the following was conveyed:

"(...) has installed a video surveillance camera in the community garage of the building located at Calle ***DIRECCIÓN.1 in Alicante, without prior authorization from the Community of Owners and without having installed the mandatory informative signs indicating a video surveillance area (...)"—page no. 1--.

Second: B.B.B. is identified as the main responsible party, with DNI ***NIF.1.

Third: The installed system was not authorized by the Board of Owners until November 23, 2022, that is, after the claimant's complaint to this agency.

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Fourth: The informational sign indicating that it is a video-surveillance area was placed after the complaint was filed, so there was no information provided at the time of the camera installation that it was a , nor about the purpose of the installation, nor about the responsible party, nor about how to exercise rights in a legal manner.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In this case, we proceed to examine the complaint dated 22/09/22 through which the presence of a camera in the parking area (Garage) of the property is reported, without prior authorization from the Community of property owners and without being properly signposted.

Before addressing the substance of the issue raised, it is important to remember that matters related to the LPH (Horizontal Property Law) should, where applicable, be referred to civil jurisdiction, as this body does not address issues that do not fall within its scope of competence.

The presence of the camera in the parking area of the property is not denied by the respondent, who provides documentary evidence of an alleged consent from the group of owners, although this evidence suffers from formal defects and is therefore not considered valid as a means of proof in law at this procedural moment.

The described area affects "common areas" of the Community of property owners (396 Civil Code) without prejudice to the fact that it lacks any informative signage indicating that it is a

"video-surveillance area," making the presence of a sign in a visible area of the parking necessary.

In situations such as those described, the installation of the camera must be communicated to the governing bodies of the Community of property owners, represented by its President, indicating the reasons for its presence, which may be justified in certain cases (e.g., repeated thefts, damage, neighborhood disputes, vehicle protection, etc.), although always directed towards the parking space where the vehicle is located and informing of its presence through an informational sign that indicates the responsible party and how to exercise rights, if applicable.

It must always be kept in mind that security cameras are intended to verify and record events occurring in the parking lot, not to prevent them from occurring, although they may be considered a deterrent

measure.

"The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informational device in a sufficiently visible location identifying, at a minimum, the existence of the processing, the identity of the responsible party, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679.

A connection code or internet address to this information may also be included in the informational device" (*the bold text belongs to this agency)—art. 22 section 4 of the LOPDGDD.

The aforementioned facts may imply an infringement of the content of Article 13 GDPR, due to the lack of informative sign(s) with an effective address to which one could direct themselves or indicate, if applicable, the main responsible party for the data processing.

Article 13 GDPR "Information to be provided when personal data are obtained from the data subject"

1. When personal data relating to a data subject are obtained from that data subject, the data controller shall provide all the information indicated below at the time of obtaining the data: a) the identity and contact details of the controller and, where applicable, of its representative; b) the contact details of the data protection officer, where applicable; c) the purposes of the processing for which the personal data are intended and the legal basis for the processing (...).

Article 72 section 1 of the LOPDGDD (LO 3/2018, December 5) regarding the limitation period for very serious infringements "shall prescribe after three years" and in particular the following:

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this organic law.

III

In accordance with the evidence available in the sanctioning procedure, it is considered that the respondent has a video-surveillance camera that was installed without informing the group of property owners of its presence or the main purpose of the same, without having placed an informational sign that met the legally required criteria at that time.

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It should be noted that, upon analyzing the allegations and evidence presented, the respondent installed a video surveillance camera voluntarily, without placing any sign informing of its presence, as it is located in a communal area.

The known facts are therefore constitutive of an infringement, attributable to the respondent, classified under Article 13 of the GDPR.

IV

Article 83.5 of the GDPR states the following: "Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the rights of the data subjects under Articles 12 to 22 (...).

In this case, it is taken into account when justifying the sanction that it concerns an individual, although the facts must be classified as serious, due to the lack of a sign informing of the presence of the device in the parking area, which justifies a fine of €300 (Three hundred euros) for the infringement of Article 13 of the GDPR, as the conduct is considered gross negligence, with the sanction positioned at the lower end of the scale for this type of behavior.

Since an informative sign has been placed, it lacks practical functionality to order any measure in this regard, as the obligation was fulfilled after the initiation of this procedure.

Therefore, in accordance with the applicable legislation and evaluated the criteria for the gradation of sanctions whose existence has been proven,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, for an infringement of Article 13 of the GDPR,

classified under Article 83.5 of the GDPR, a fine of €300 (Three hundred euros).

SECOND: TO NOTIFY this resolution to B.B.B.

THIRD: TO WARN the sanctioned party that they must pay the imposed sanction once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN:

ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXES-BBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is executive, if the date of executive status falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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